

# COURTS IN THE NIGERIAN LEGAL SYSTEM

## 1.0 Establishment and Classification of Courts

The judicial powers of courts to adjudicate on civil and criminal rights and liabilities of persons and other litigants are generally provided under **section 6 of the 1999 Constitution of the Federal Republic of Nigeria (as amended)**.<sup>1</sup> The provision of section 6 of the Constitution, in furtherance of the provision of section 4 which divides the legislative powers of the country between the National Assembly for the Federation and the State Houses of Assembly for the States, establishes courts for the Federation<sup>2</sup> and courts for the States.<sup>3</sup> However, the courts established for the Federation and those established for the States are all referred to as superior courts of record under section 6(3) of the Constitution. Aside the Constitution, the next source of authority for the establishment and functioning of courts in Nigeria is the respective statutes establishing them. That is, each of the superior courts of record or Tribunals is also established either by an Act of the National Assembly in respect of the courts of the Federation or a Law of the House of Assembly in respect of the courts established for the States. According to **Obilade**, courts in Nigeria may be classified in several ways but the most important forms of classifications are ‘superior courts’ of record and ‘inferior courts’.<sup>4</sup>

## 2.1 Superior Courts of Record

Superior courts of record are courts expressly named and established by **section 6(5)(a) – (k) of the 1999 Constitution (as amended)**. Aside from being directly named in the Constitution, superior courts of record have also been so described for following reasons. One, each of the superior courts of record or Tribunals is also established either by an Act of the National Assembly in respect of the courts for the Federation such as the Federal High Court or by a Law of the House of Assembly in respect of the courts established for the States such as a High Court of a State. Two, each of the superior courts of record or Tribunals also has its peculiar rules of procedure. For examples, High Court of the Federal Capital Territory, Abuja (Civil Procedure) Rules 2004; High Court of Lagos State (Civil Procedure) Rules 2012. These Rules of Civil Procedure have been made by the respective chief judge of each court pursuant to their powers under the enabling Act or Law establishing the courts.<sup>5</sup>

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<sup>1</sup> 1999 Constitution of the Federal Republic of Nigeria, Cap C23, Laws of the Federation of Nigeria (LFN), 2004 (as amended).

<sup>2</sup> *Ibid*, section 6 (1). This section simply vests the judicial powers of the Federation in the courts established for the Federation pursuant to the powers of the National Assembly under section 4 (1)(2)(3) & (4) of the constitution.

<sup>3</sup> *Ibid*, section 6 (2). This section also vests the judicial powers of the States of the Federation in the courts established for the States pursuant to the powers of the States Houses of Assembly under section 4 (6) & (7) of the constitution.

<sup>4</sup> A.O. Obilade, *The Nigerian Legal System* (first published 1979, London: Sweet & Maxwell) p.160

<sup>5</sup> See for example, section 89 (1) of the High Court Law, Cap. H3 Laws of Lagos State 2003 as amended by High Court (Amendment Law) 2012.

Although superior courts of record are often thought to be courts of ‘unlimited jurisdiction’,<sup>6</sup> this is not actually the case in the strict sense of that description. The courts do have limited scope of jurisdictions and spheres of authority. Indeed, there is no court under the laws of Nigeria without some limit to its jurisdiction, not even the Supreme Court as the final court in the country. According to Obilade, “*but superior courts are so described because the limits to their jurisdiction are minimal. They have minimal jurisdictional limits with respect to the type of subject-matter but they are not limited in jurisdiction with respect to the mere value of the subject-matter of a case.*”<sup>7</sup>

Further, the word “record” in the description of superior courts traditionally denotes two things. Firstly, that a superior court was a court which kept a written record of its acts and proceedings. Secondly, that it is was a court with powers to punish a person for contempt committed in the face of the court (*in facie curia*) or outside the court (*ex facie curia*). However, the record keeping component now has little or no relevance as all courts, whether superior or inferior, now keep records of their acts and proceedings. Also, on the powers to punish a person for contempt committed in the face of the court and outside the court, all courts, whether superior or inferior, have the powers for such punishment under their enabling statutes, but only a superior court may summarily<sup>8</sup> punish a contemnor for contempt committed out of the court.<sup>9</sup>

The superior courts of record and Tribunals directly established by section 6(5) of the 1999 Constitution (as amended) are as follows:

- (a) the Supreme Court of Nigeria;
- (b) the Court of Appeal;
- (c) the Federal High Court;
- (cc) the National Industrial Court;<sup>10</sup>

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<sup>6</sup> The idea of an “unlimited jurisdiction” itself came from the common law systems in relation to superior courts in England. That is, a court of general competence which typically has ‘unlimited jurisdiction’ with regard to civil and criminal legal cases. A superior court is thus said to have an unlimited jurisdiction relative to an inferior or lower court with limited jurisdiction on subject-matter of a case, restrictions involving monetary amounts in a case, or criminal cases involving offenses of a less serious nature. The courts in Nigeria have consistently interpreted the term ‘unlimited jurisdiction’ to mean a mere descriptive expression that vest a court with authority to entertain In the case of *Enugwu v. Okefi* (2003) 3 NWLR (Pt. 650) 620 the jurisdiction of the High Court was interpreted to be limited notwithstanding the description of ‘unlimited jurisdiction’ under section 236 of the 1979 Constitution. However, there is no such description as ‘unlimited jurisdiction’ under section 270 of the present 1999 Constitution (as amended) which establishes the High Court of a State.

<sup>7</sup> A.O. Obilade, *supra*, p. 169

<sup>8</sup> This simply means that a superior court of record can punish a contemnor for contempt committed outside the court without the presentation of a formal charge. Before an inferior court can convict a person for contempt committed out of the court there must be a formal charge in respect thereof.

<sup>9</sup> Similarly, the power of a superior court to punish a contemnor for contempt committed in the face of the court is preserved by section

<sup>10</sup> The National Industrial Court (NIC), it must be noted, was only introduced into the 1999 Constitution (as amended) as a superior court of record pursuant to the provision of section 254A – 254F of Constitution of the federal Republic of Nigeria (Third Alteration) Act, 2010.

- (d) the High Court of the Federal Capital Territory, Abuja;
- (e) a High Court of a State
- (f) the Sharia Court of Appeal of the Federal Capital Territory, Abuja;
- (g) a Sharia Court of Appeal of a State;
- (h) the Customary Court of Appeal of the Federal Capital Territory, Abuja;
- (i) a Customary Court of Appeal of a State;
- (j) such other courts as may be authorized by law to exercise jurisdiction on matters with respect to which the National Assembly may make laws;<sup>11</sup>

## 2.2 Inferior Courts

Inferior courts, on the other hands, are courts other than superior courts of record as may be established by an Act of the National Assembly or a Law of a House of Assembly of a State to exercise jurisdiction in the first instance or on appeal in matters over which the National Assembly or a House of Assembly may make laws.<sup>12</sup> They are courts over which a High Court of a State or that of the Federal Capital Territory (FCT), Abuja, as the case may be, typically has supervisory or appellate jurisdictions. Inferior courts include the following:

- (i) Magistrates courts
- (ii) Customary courts
- (iii) Area courts
- (iv) Shari'ah Courts
- (v) Special Offence Courts or Tribunals
- (vi) Rent Tribunals

## 3.0 Superior Courts of Record

### 3.1 The Supreme Court of Nigeria (Ss. 230 – 236)

The Supreme Court of Nigeria is the apex in hierarchy of court of law in Nigeria with final authority on the exercise of the judicial powers of the federation. The finality<sup>13</sup>, albeit without infallibility, of the Supreme Court's authority had been aptly captured in the eternal words of late Justice Chukwudifu Oputa, JSC in the case of *Adegoke Motors v Adesanya (1983)*<sup>14</sup> thus: "*We are final not because we are infallible, rather we are infallible because we are final. Justices of*

<sup>11</sup> This sub-section relates generally to other courts that may be established from time to time by the Acts of the National Assembly on matters over which they may legislate.

<sup>12</sup> Section 6 (5) (K) 1999 Constitution (as amended.)

<sup>13</sup> The finality of the authority of the Court has been preserved under section 235 of the 1999 Constitution thus: 'Without prejudice to the powers of the President or of the Governor of a state with respect to prerogative of mercy, no appeal shall lie to any other body or person from any determination of the Supreme Court.'

<sup>14</sup> (1983)3 NWLR (Pt 109) 250 @ 274-275.

*this Court are human beings capable of erring. It will be short sighted arrogance not to accept this obvious truth.”* The Court is the only supreme court in the entire federation of Nigeria. Although the Court only sits in the Federal Capital Territory, Abuja, *“there is no provision in the Constitution of any statute that prohibits the Supreme Court from sitting or holding session outside Abuja or any of the States of Nigeria.”*<sup>15</sup>

### 3.1.1 Establishment

The Supreme of Nigeria was originally established under the Republican Constitution of 1963.<sup>16</sup> The 1963 Constitution had provided that the judges of the court are the Chief Justice of Nigeria and such number of other judges known as the justices of the Supreme Court.<sup>17</sup> In the subsequent Constitutions, the most prominent of which have been that of the 1979<sup>18</sup> and the present of 1999, the position of law with respect to the status of the Supreme Court has not been different. Presently, the Supreme Court of Nigeria is established by **section 230 (1) of the 1999 Constitution (as amended)** which simply provides that *“There shall be a Supreme Court of Nigeria.”* Further to the primary provisions of the Constitution which establish the Court, there is also the Supreme Court Act 2004<sup>19</sup> which makes specific provisions in terms of the structure, composition, jurisdiction and administration of the Court amongst others. For example, the powers of the Chief Justice of Nigeria to make rules for procedure of the Court is derived under the Act.<sup>20</sup>

### 3.1.2 Composition

Section 230 (2) provides thus on the composition of the Supreme Court:

- (2) The Supreme Court of Nigeria shall consist of –
  - (a) the Chief Justice of Nigeria; and
  - (b) such number of Justices of the Supreme Court, not exceeding twenty-one, as may be prescribed by an Act of the National Assembly.

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<sup>15</sup> Lawal Pedro, *Jurisdiction of Courts in Nigeria: Materials and Cases* (1<sup>st</sup> edn, Lagos State Ministry of Justice Law Review Series 2006) 19.

<sup>16</sup> N.N. Laws 1963, Cap. 89

<sup>17</sup> *Ibid*, s. 111 (2).

<sup>18</sup> The Supreme Court was established by section 212 of the 1979 Constitution which is in *pari material* with section 232 of the present 1999 Constitution.

<sup>19</sup> Supreme Court Act CAP. 424 LFN 1990; CAP. S15 L.F.N. 2004

<sup>20</sup> *Ibid*, ss. 7 & 10. See particularly section 236 of the 1999 Constitution which provides thus: ‘Subject to the provisions of any Act of the National Assembly, the Chief Justice of Nigeria may make rules for regulating the practice and procedure of the Supreme Court.’

Whilst the Constitution provides for a maximum of 21<sup>21</sup> justices for full complement of the Court's Justices, there is no any requirement of law and practice that all of the Justices must sit over a case for the Court to be properly constituted. Thus, depending on the nature of the issue before the court, the standard quorum of the Court is a panel of not less than 5 justices in respect of matters in its general appellate jurisdiction<sup>22</sup> and a panel of not less than 7 justices in respect of matters relating to its original jurisdiction or for consideration of an appeal from the decision of the court of appeal on question of interpretation of the Constitution or on any matter relating to the issues of rights under the provisions of Chapter IV of the Constitution.<sup>23</sup> There are presently (as at January, 2018) a total of 17 Justices of the Supreme Court including Hon. Justice Walter Samuel Nkanu Onnoghen as the Chief Justice of Nigeria.

### 3.1.3 Jurisdiction

The jurisdiction of the Supreme Court of Nigeria is essentially dual. Original and appellate jurisdiction.

#### (a) (i) Original Jurisdiction of the Supreme Court

This is the jurisdiction that only the Supreme Court exercises to the exclusion of all other courts in the land. **Section 232 of the 1999 Constitution** provides thus:

232. (1) The Supreme Court shall, to the exclusion of any other court, have original jurisdiction in any dispute between the Federation and a state or between states if and in so far as that dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.

(2) In addition to the jurisdiction conferred upon it by subsection (1) of this section, the Supreme Court shall have such original jurisdiction as may be conferred upon it by any Act of the National Assembly.

Provided that no original jurisdiction shall be conferred upon the Supreme Court with respect to any criminal matter.

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<sup>21</sup> The inability of the Supreme Court to have the maximum numbers of the 21 justices allowed by the 1999 Constitution under section 230(2)(b), in spite of complaints of workload of cases and slow dispensation of cases, has always been a source of great concern for stakeholders. It is often thought, and rightly so, that if the Supreme Court cannot expand its personnel and space to enhance its efficiency, it should at least enjoy the maximum number of justices allowed it under the Constitution. Meanwhile the maximum 21-maximum number of Justices of Supreme Court permitted under 1999 Constitution is actually an improvement on the maximum 15 permitted under the previous section 210 of the 1979 Constition.

<sup>22</sup> *Ibid*, s. 234 provides that 'for the purpose of exercising any jurisdiction conferred upon it by this Constitution or any Law, the Supreme Court shall be duly constituted if it consists of not less than five Justices of the Supreme Court.'

<sup>23</sup> *Ibid*, s. 234. The proviso to that section provides thus: 'Provided that where the Supreme Court is sitting to consider an appeal brought under 233(2)(b) or (c) of this Constitution, or to exercise its original jurisdiction in accordance with section 232 of this Constitution, the Court shall be constituted by seven Justices.'

From the above provision of the Constitution, it is crystal clear that the original jurisdiction of the Supreme Court may only be invoked by the Federal Government of Nigeria (on behalf of the Federation) against the States or a State or the States or a State against the Federation or a State against another State or the States among themselves, where any dispute on question of law or fact arises. It follows therefore that the Supreme Court does not have original jurisdiction on dispute among persons or institutions against the government or government against persons or institutions. Indeed, in the case of **Att. Gen. of Abia State v. Att. Gen. of the Federation (2002)**<sup>24</sup> where 37 Local Government Chairmen as representatives of all Chairmen of Local Governments in Nigeria had sought to be joined as co-defendants in a case brought by the Abia State Government, the Supreme Court refused their application for joinder in the following words:

*The Supreme Court has no jurisdiction under section 232 (1) of the 1999 Constitution to determine any dispute at first instance, between the Local Governments and their respective State Governments. In this case, the application filed by the 37 Chairmen representing all the Chairmen of Local Governments in Nigeria to be joined as co-defendants is incompetent.*

Similarly, in the case of **Att. Gen. of the Federation v. Att. Gen. of Lagos State (2011)**<sup>25</sup> the Supreme Court upheld the preliminary objection filed by Lagos State Government and struck out the case of the Federal Government on the ground that the Federal Government had already transferred its title in the land subject matter of their dispute to a third party. In other words, the court held that it lacked original jurisdiction since a third party, and not the Federal Government, held the title in the land subject matter of their dispute.

In the case of **Att. Gen. of the Federation v. Att. Gen. Abia State & Ors (2001)**, the then Chief Justice of Nigeria, Mohammed Law Uwais, JSC who delivered the majority decision of the Court aptly interpreted the provision of section 232 of the 1999 Constitution thus:

*To invoke the original jurisdiction of the Supreme Court, there must be a dispute as so qualified between the federation and a State. Dispute is the act of argue against, controversy, debate, argument, disagreement, contention as to right, claims and the like or a matter of opinion. As in accordance with established principle of the interpretation of the constitution that the words of a constitution are not to be read with stultifying narrowness, the word 'dispute' in section 232 (1) of the 1999 Constitution should be given such meaning that will effectuate rather than defeat the purpose of that section of the constitution.*

In interpretation of the above provision, the Supreme Court have also consistently held that only justiciable dispute with substantial question of law or fact to be resolved may form the basis of invoking the original jurisdiction of the Court. Thus, non-justiciable or mere academic or

<sup>24</sup> (2002) 6 NWLR (Pt. 763) 264 @ 367-377

<sup>25</sup> Suit No SC/50/2011

hypothetical questions will not be entertained by the Court. In *Lt. Bamaiyi v. Att. Gen Federation & Ors (2001)*<sup>26</sup>, Iguh JSC held thus:

*In this regard, the court has repeatedly made the point that where a question before the court is entirely academic, speculative or hypothetical, the appellate court in accordance with well-established principles must decline to decide such a point.*

**(a) (ii) Additional Original Jurisdiction of the Supreme Court.**

Pursuant to the provision of **section 232(2) of the 1999 Constitution** cited above, the National Assembly in April 2002 enacted the *Supreme Court (Additional Original Jurisdiction) Act No 3 of 2002* vesting the Supreme Court with the additional original jurisdiction. Sections 1, 2 & 3 of the Act provides thus:

1.(1) In addition to the original jurisdiction conferred upon the Supreme Court of Nigeria by section 232 (1) of the 1999 Constitution, the Supreme Court shall, to the exclusion of any other court, have original jurisdiction in any dispute between-

- (a) the National Assembly and the President;
- (b) the National Assembly and any State House of Assembly; and
- (c) the National Assembly and a State of the Federation in so far as that dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.

(2) Nothing in this Act shall be construed as conferring Original Jurisdiction upon the Supreme Court with respect to any criminal matter.

2. The provisions of the Schedule to this Act applies with respect to matters provided therein.

3. Section 20 of the Supreme Court Act is amended to the extent that in any such suit by or against-

- (a) the National Assembly; or
- (b) a State House of Assembly,  
the nominal party in the case of-
  - (i) National Assembly is the National Assembly;
  - (ii) a State House of Assembly is the Speaker of the State House of Assembly, as stated in this Act.

In exercise of the additional original jurisdictions provided above, the Schedule to the Act clearly provides that neither the National Assembly nor a State House of Assembly shall institute or initiate any such legal proceedings except a simple majority resolution of the members of the respective house present and sitting at the time has been duly passed. Specifically, on National

<sup>26</sup> (2001) 7 S.C (Pt. 11) 62. See also the earlier cases of *Att. Gen. of Bendel State v. Att. Gen. of the Federation (1981) 12 NSCC 314*; *Att. Gen. of Ondo State v. Att. Gen. of the Federation (1983) 2 SCNLR 269*; *Att. Gen. of Imo State v. Att. Gen. of the Federation (1982) 13 NSCC 567*; *Nkwocha v. Gov. Anambra State (1984) 6 S.C. 302*.

Assembly, it is also provided that the National Assembly shall not institute or initiate any legal proceedings except such a simple majority resolution of each of the two chambers has been duly passed. It follows consequently that neither of the two chambers of the National Assembly can independently institute or initiate a legal proceeding in its own name. It has to be the National Assembly as an institution and not the Senate or the House of Representatives individually.<sup>27</sup>

For the invocation of the original jurisdiction of the Supreme Court, it should be noted that only the Attorneys-General of the Federation and those of the States are persons conferred with the powers to sue or be sued on behalf of their respective governments. In the case of the National Assembly it is the National Assembly in its name as such, and in the case of a House of Assembly, it is the Speaker of the House as nominal party for and on behalf of that House. However, the Supreme Court has noted in the case of *Plateau State of Nigeria and Anor v. Attorney General of the Federation and Anor (2006)*<sup>28</sup> that commencement or institution of a suit erroneously in the name of a state instead of using the title of the Attorney General of the state or the House of Assembly instead of using the title of the Speaker of the House is a mere irregularity that is not fatal to the competence of the suit. According to Justice Idris Legbo Kutiji, JSC, who gave the lead judgment in that case, such irregularity is clearly procedural and should be waived or overlooked since the State or the House of Assembly as the case may be are the principal parties while the Attorney General or the Speaker of the House of Assembly are nominal parties.

#### **(b) Appellate Jurisdiction of the Supreme Court**

This is the general superior, supervisory and final exercise of the authority of the Supreme Court of Nigeria over all other courts below it in all civil and criminal cases. Accordingly, section 233 (5) & (6) of the 1999 Constitution (as amended) provides thus:

(5) Any right of appeal to the supreme Court from the decisions of the Court of Appeal conferred by this section shall be exercisable in the Case of civil proceedings at the instance of a party thereto, or with the leave of the Court of Appeal or the Supreme Court at the instance of any person having an interest in the matter, and in the case of criminal proceedings at the instance of an accused person, or subject to the provisions of this Constitution and any powers conferred upon the Attorney-General of the Federation or the Attorney-General of a state to take over and continue or to discontinue such proceedings, at the instance of such other authorities or persons as may be prescribed.

From the above clear provision of the Constitution, certain points are generally discernible. One, an appeal in civil cases may only lie from the Court of Appeal to the Supreme Court in all civil and criminal cases. Thus, in the order of hierarchy of courts, there cannot be a direct right of

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<sup>27</sup> See generally section 3 Supreme Court (Additional Original Jurisdiction) Act No 3 of 2002.

<sup>28</sup> (2006) 1 All N.L.R 304; [2006] NGSC 39.

appeal directly to the Supreme Court from any other court below the court of appeal.<sup>29</sup> An appeal to the Supreme Court from the Court of Appeal by any dissatisfied party is primarily a matter of personal right of such a party.<sup>30</sup> Three, a non-party but interested person<sup>31</sup> may also by leave of the Court of Appeal or the Supreme Court file an appeal. Fourth, in the case of a criminal proceedings, by an accused person personally or through anyone at his instance, subject to the powers of the *Nolle prosequere* powers of the Attorney General of the Federation or that of the State to take over and continue or discontinue such criminal proceedings.

On the issue of timing and other procedures for filling of appeal at the Supreme Court, section 233 (6) of the 1999 Constitution (as amended) provides thus:

(6) Any right of appeal to the Supreme Court from the decisions of the Court of Appeal conferred by this section shall, subject to section 236 of this Constitution, be exercised in accordance with any Act of the National Assembly and rules of court for the time being in force regulating the powers, practice and procedure of the Supreme Court.

In furtherance of the above provision, the Supreme Court Act makes provisions with respect to such issues of time and other procedures. For example, section 27 (2) (a) and (b) of the Act that an appeal against a final decision of the Court of Appeal to the Supreme Court shall be filled not later than 3 months after such a final decision; 14 days in case of an interlocutory appeal. Further, an appeal against a final decision in a criminal proceeding is to be filed within 30 days. Section 27 (4) of the Act also gives the Supreme Court the power to extend the time within which the above act or any other act could be performed.

## **3.2 The Court of Appeal (ss. 237 – 249)**

The Nigerian Court of Appeal is the next to the Supreme Court in order of hierarchy of courts in Nigeria. It is a superior court of record with supervisory and superior authority over all other courts below it. And there is none at par with it.

### **3.2.1 Establishment**

The Nigerian Court of Appeal was first established on October 1<sup>st</sup>, 1976 as a Federal Court of Appeal by the Constitution of the Federation.<sup>32</sup> The title Federal Court of Appeal was also retained under section 217 of the 1979 Constitution. Under the provision of section 237 of the

<sup>29</sup> This is a general position of the law and there are few exceptions to be considered subsequently in this discussion.

<sup>30</sup> A party is a person involved in the proceedings at the court below.

<sup>31</sup> The courts have consistently held that an interested person is a person whose interest may be affected by the outcome or consequence of a proceedings conducted in his absence and who may then be allowed to partake in the proceedings or question the outcome as the case may be. See *Ogundiani v. Araba* (1978) 6-7 SC 55.

<sup>32</sup> Constitution of the Federation 1976 amended by the Constitution (Amendment) (No 2) Decree No 42 of 1976.

current 1999 Constitution (as amended) the court is simply referred to as Court of Appeal. However, since Nigeria is still a federation, it is granted that the Court is a federal court for all practical purposes, this is even so that the Nigerian federation does not have appeal court in the mould of the present Court of Appeal at the level of the federating units – the States.

### 3.2.2 Composition

On the composition of the justices of the Court of Appeal, section 237 of the 1999 Constitution (as amended) provides thus:

237. (1) There shall be a Court of Appeal.

(2) The Court of Appeal shall consist of - (a) a President of the Court of Appeal; and

(b) such number of Justices of the Court of Appeal, not less than forty-nine of which not less than three shall be learned in Islamic personal law, and not less than three shall be learned in Customary law, as may be prescribed by an Act of the National Assembly.

From the above provision of the Constitution, the Court of Appeal is presided over by a President and such other number of Justices not less than 49<sup>33</sup> in all. However, three each of such minimum number of 49 Justices must be learned in Islamic personal law<sup>34</sup> and in Customary law.<sup>35</sup> The headquarter of the Court of Appeal is in Abuja where the President ordinarily sits and presides. There are also presently (as at January 2018) 15 divisions of the Court of Appeal across different States or geopolitical zones of Nigeria with a total of 78 Justices including Hon. Justice Zainab Adamu Bulkachuwa as the President of the Court.

### 3.2.3 Jurisdiction

From the clear provisions of the 1999 Constitution, the jurisdiction of the Court of Appeal can be clearly divided into two namely: original jurisdiction and appellate jurisdiction. Prior to coming into force of the 1999 Constitution on 29<sup>th</sup> May, 1999, the Court of Appeal only had an appellate jurisdiction and had no original jurisdiction on any matter whatsoever. However, like the

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<sup>33</sup> Under the 1979 Constitution, section 217 (2) (b) merely prescribed that the number of the Justices of the Court shall not be less than 15, meaning it could be just anything beyond 15 or more than the present minimum of 49 prescribed under the 1999 Constitution. Indeed, there are presently (as at January 2018) 15 divisions of Court of Appeal across different States or geopolitical zones of Nigeria and a total of 78 Justices including Hon. Justice Zainab Adamu Bulkachuwa as the President of the Court.

<sup>34</sup> Issues of Islamic 'personal law' or 'matters of Muslims' as guaranteed under the provision of section 277(2) (c) of the 1999 Constitution (as amended) relates to such issues as infants, *waqf* (endowment or charitable trusts), gifts, will or succession, marriage, endowment, and donor affecting Muslims and does not under whatever guise extend to penal laws.

<sup>35</sup> Section 274 of the 1999 Constitution (as amended).

Supreme Court of Nigeria, the Court of Appeal has no original jurisdiction in respect of any criminal cause whatsoever.

### 3.2.3 (a) Original Jurisdiction.

On the original jurisdiction of the Court of Appeal, section 239 (1) and (2) of the 1999 Constitution (as amended) provides thus:

239. (1) Subject to the provisions of this Constitution, the Court of Appeal shall, to the exclusion of any other court of Law in Nigeria, have original jurisdiction to hear and determine any question as to whether –

(a) any person has been validity elected to the office of President or Vice-President under this Constitution; or

(b) the term of office of the President or Vice-President has ceased; or

(c) the office of President or Vice-President has become vacant.

(2) In the hearing and determination of an election petition under paragraph (a) of subsection (1) of this section, the Court of Appeal shall be duly constituted if it consists of at least three Justices of the Court Appeal.

The Court of Appeal sitting as the Presidential Election Petition Tribunal has the original jurisdiction, as the Court of first instance, to determine any of the above issues. In other words, only the Court of Appeal while sitting as the Presidential Election Petition Tribunal has the exclusive original jurisdiction to hear and determine election petition and other related matters concerning the office of the president or vice president and any question as to whether such offices have become vacant. For the regulation of its sitting as such, there are clear provisions of the Electoral Act 2010<sup>36</sup> (as amended) on the practice and procedure of the Court in that respect.<sup>37</sup> In the case of *Attorney-General of the Federation v. Abubakar* (2007)<sup>38</sup> the Court of Appeal exercised its original jurisdiction under section 239 (1)(c) and held, amongst others, that the office of the then Vice-President, Alhaji Atiku Abubakar, remained occupied by him until May 29, 2007 when the tenure of his office will ordinarily expire. The then President Olusegun Obasanjo had declared the seat vacant on the grounds including that the Vice-President decamped from the PDP, the political party the elected him into power, into the ACN, an opposition party. The then Vice-President then approached the Court of Appeal for

<sup>36</sup>The Electoral (Amendment) Act, No.2, 2010 repealed the Electoral Act No. 2, 2006 and the Independent National Electoral Commission Act, Cap. 15, Laws of the Federation of Nigeria, 2004 and enacted the Electoral Act, 2010 to regulate the conduct of Federal, State and Area Council elections; and for related matters.

<sup>37</sup> More will be discussed on this below under Election Petition Tribunals.

<sup>38</sup> (2007) ALL FWLR, (PT 375)1264 AT 1289 (CA). See also S.C. 31/2007 where the Supreme Court subsequently upheld the judgement of the Appeal Court in the case.

determination of the issue. In the case of *Obasanjo v. Yusuf (2004)*<sup>39</sup> the Court affirmed the general original jurisdiction of the Court thus:

*The court of appeal as the presidential election petition tribunal has original jurisdiction to hear and determine presidential election petition vide section 239 (1) of the constitution and consequently to hear all matters related to the election.*

### **3.2.3 (b) Appellate Jurisdiction.**

In the exercise of its appellate jurisdiction, the section 240 of the 1999 Constitution (as amended) provides thus:

Subject to the provisions of this Constitution, the Court of Appeal shall have jurisdiction to the exclusion of any other court of law in Nigeria, to hear and determine appeals from the Federal High Court, the High Court of the Federation Capital Territory, Abuja, High Court of a state, Sharia Court of Appeal of the Federal Capital Territory, Abuja, Sharia Court of Appeal of a state, Customary Court of Appeal of a state and from decisions of a court martial or other tribunals as may be prescribed by an Act of the National Assembly.

By the above provision, it is crystal clear that appeals shall lie from all the listed courts to the Court of Appeal directly. By necessary implications therefore, the Court of Appeal is superior to and exercises appellate jurisdiction over all the courts. However, appeal from any of the courts to the Court of Appeal may be either as of right or with the leave of the same court or the Court of Appeal. Section 241 of the Constitution also makes clear provision for the various instances where appeal will lie as of right or with leave of court.

An appeal shall lie as of right from decisions of the Federal High Court or a High Court to the Court of Appeal as of right in the following cases provided for under section 241 (1) of the Constitution:

- (a) final decisions in any civil or criminal proceedings before the Federal High Court or a High Court sitting at first instance;
- (b) where the ground of appeal involves questions of law alone, decisions in any civil or criminal proceedings;
- (c) decisions in any civil or criminal proceedings on questions as to the interpretation or application of this Constitution;
- (d) decisions in any civil or criminal proceedings on questions as to whether any of the provisions of Chapter IV of this Constitution has been, is being or is likely to be, contravened in relation to any person;

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<sup>39</sup> (2004) 9 NWLR (Pt. 877) 144

- (e) decisions in any criminal proceedings in which the Federal High Court or a High Court has imposed a sentence of death;
- (f) decisions made or given by the Federal High Court or a High Court –
  - (i) where the liberty of a person or the custody of an infant is concerned,
  - (ii) where an injunction or the appointment of a receiver is granted or refused,
  - (iii) in the case of a decision determining the case of a creditor or the liability of a contributory or other officer under any enactment relating to companies in respect of misfeasance or otherwise,
  - (iv) in the case of a *decree nisi* in a matrimonial cause or a decision in an admiralty action determining liability, and
  - (v) in such other cases as may be prescribed by any law in force in Nigeria.

Furthermore, sections 244 (1), 245 (1) and 246 (1) clear specificity different circumstances under which appeals may lie to the Court of Appeal as of rights a Sharia Court of Appeal, Customary Court of Appeal and the Code of Conduct Tribunal respectively.

An appeal shall also lie by leave either of the Court of Appeal or from the court being appealed from under several circumstances provided for under section 242 of the Constitution generally. For example, an appeal shall lie from the decisions of Court Martial established under the provisions of the Armed Forces Act<sup>40</sup> to the Court of Appeal with leave the court martial and if refused, with leave of the Court of Appeal as the case may be. However, where the decision involves a sentence of death, the appeal shall lie to the Court of Appeal as of right. In ***The Nigerian Air Force v. Wing Commander Shekete (2002)***<sup>41</sup> the court held thus:

*By virtue of the combined provision of sections 182, 187, 190 and 202 of the Armed Forces Decree No 105 of 1993 (as amended), an appeal lies from the decision of a court martial to the Court of Appeal with the leave of the Court of Appeal. However, where the decision of a court martial involves a sentence of death, the appeal lies as of right without leave of the Court of Appeal.*

Finally, for the purpose of exercising its jurisdiction as conferred by the Constitution or an any other law, section 247 (1) of the Constitution provides that the Court of Appeal shall be duly constituted if it consists of not less than three Justices of the Court of Appeal sitting together at one. And in the cases of appeals from the Sharia Court of Appeal and Customary Court of Appeal, if it consists of not less than three Justices of the Court of Appeal learned in Islamic personal law and customary law respectively. But by the provision of section 10 of the Court of Appeal Act,<sup>42</sup> a single Justice of the Court has the jurisdiction to exercise any power vested in the Court other than the power of final determination of any cause or matter before the Court.

<sup>40</sup> ARMED FORCES (DISCIPLINARY PROCEEDINGS) (SPECIAL PROVISIONS) ACT CAP.22 L.F.N. 1990; CAP. A 22 L.F.N. 2004.

<sup>41</sup> (2002) 12 S.C (Pt 11) 52

<sup>42</sup> Court of Appeal Act Cap. 75 L.F.N. 1990; CAP. C36 L.F.N. 2004

### **3.3 The Federal High Court (ss. 249 – 254)**

#### **3.3.1 Establishment and Composition**

The Federal High Court as we have it today was first established in 1973 and originally known as the Federal Revenue Court under the Federal Revenue Act of 1973<sup>43</sup> which established it. It was then subsequently rechristened as Federal High Court under section 230 of the 1979 Constitution of the Federal Republic of Nigeria. In discussing the jurisdiction of the Federal High Court, it is submitted, from onset, that no other court in Nigeria has had the scope of its jurisdiction subjected to so much litigations than the Federal High Court. Several reasons may be adduced to buttress this point but topmost among them is the fact that the Federal High Court and the High Courts of the Federal Capital Territory, Abuja and those of the States are at par<sup>44</sup> in order of hierarchy of courts in Nigeria and do share concurrent and even conflicting jurisdiction over several matters. There are several cases<sup>45</sup> to buttress this point and it is not within the scope of the discussion here to wade through the complex intricacies of that contentious past of the Federal High Court. It must also be noted that there isn't much cloud regarding the jurisdiction of the Federal High Court today as it used to be.

Under the present 1999 Constitution (as amended) the Federal High Court is established under section 249 (1) thus:

249. (1) There shall be a Federal High Court.

(2) The Federal High Court shall consist of - (a) a Chief Judge of the Federal High Court; and

(b) such number of Judges of the Federal High Court as may be prescribed by an Act of the National Assembly.

For the proper constitution of the Federal High Court to exercise its jurisdiction the court will be duly constituted with a single Judge of that Court sitting alone to hear and determine any matter within the jurisdiction of the Court.<sup>46</sup>

#### **3.3.2 Jurisdiction**

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<sup>43</sup> Decree No 13 of 1973

<sup>44</sup> Section 252 (1) of the 1999 Constitution provides that a Federal High Court shall have all the powers of the High Court of a State.

<sup>45</sup> See generally - *Jammal Steel Structures v. A.C.B* (1973) All N.L.R. (Pt. 1); *American International Insurance Company v. CEEKAY Traders LTD* (1981) 5 SC 81; *Skenconsult (Nig) Ltd & Anor v. Godwin Ukey* (1981) 1 SC 6; *Bronik Motors Ltd v. Wema Bank* (1983) 6 S.C. 158; *Savanah Bank v. Pan Atlantic* (1987) 1 NWLR (Pt. 49) 212; *A.M.C v. NPA* (1987) 1 NWLR (Pt. 51) 475; *Tukur v. Gongola State* (1989) 4 NWLR (Pt. 117) 517; *NEPA v. Edegbero* (2002) 18 NWLR (Pt. 798) 79; *NDIC v. Okem Enterprises Ltd* (2004) 10 NWLR (Pt. 880) 107; *KLM Airlines v. Kumzhi* (2004) 8 NWLR (Pt. 875) 231; *Grace Jack v. University of Agriculture Makurdi* (2004) 5 NWLR (Pt. 865) 208; *Onuorah v. KRPC Ltd* (2005) 6 NWLR (Pt.921) 393; *Fasakin Foods Ltd v. Shosanya* (2006) 10 NWLR (Pt. 987) 126.

<sup>46</sup> Section 253 1999 Constitution (as amended)

The Federal High Court generally has an exclusive civil and criminal as well as appellate jurisdictions with respect to matters under its specified jurisdiction under the Constitution.

### **3.3.2 (a) Civil Jurisdiction.**

Civil jurisdiction of the Federal High Court is generally preserved under Section 251 (1) of the 1999 Constitution; section 7 (1) of the Federal High Court Act<sup>47</sup> as well as other statutes. Section 251 (1) 1999 Constitution is however the most important and comprehensive provision on the jurisdiction of the Federal High Court. It provides thus:

251. (1) Notwithstanding anything to the contained in this Constitution and in addition to such other jurisdiction as may be conferred upon it by an Act of the National Assembly, the Federal High Court shall have and exercise jurisdiction to the exclusion of any other court in civil causes and matters - (a) relating to the revenue of the Government of the Federation in which the said Government or any organ thereof or a person suing or being sued on behalf of the said Government is a party;

(b) connected with or pertaining to the taxation of companies and other bodies established or carrying on business in Nigeria and all other persons subject to Federal taxation;

(c) connected with or pertaining to customs and excise duties and export duties, including any claim by or against the Nigeria Customs Service or any member or officer thereof, arising from the performance of any duty imposed under any regulation relating to customs and excise duties and export duties;

(d) connected with or pertaining to banking, banks, other financial institutions, including any action between one bank and another, any action by or against the Central Bank of Nigeria arising from banking, foreign exchange, coinage, legal tender, bills of exchange, letters of credit, promissory notes and other fiscal measures:

Provided that this paragraph shall not apply to any dispute between an individual customer and his bank in respect of transactions between the individual customer and the bank;

(e) arising from the operation of the Companies and Allied Matters Act or any other enactment replacing the Act or regulating the operation of companies incorporated under the Companies and Allied Matters Act;

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<sup>47</sup> FEDERAL HIGH COURT ACT CAP. 134 L.F.N. 1990; CAP F12 L.F.N. 2004

(f) any Federal enactment relating to copyright, patent, designs, trademarks and passing-off, industrial designs and merchandise marks, business names, commercial and industrial monopolies, combines and trusts, standards of goods and commodities and industrial standards;

(g) any admiralty jurisdiction, including shipping and navigation on the River Niger or River Benue and their affluents and on such other inland waterway as may be designated by any enactment to be an international waterway, all Federal ports, (including the constitution and powers of the ports authorities for Federal ports) and carriage by sea;

(h) diplomatic, consular and trade representation;

(i) citizenship, naturalisation and aliens, deportation of persons who are not citizens of Nigeria, extradition, immigration into and emigration from Nigeria, passports and visas;

(j) bankruptcy and insolvency;

(k) aviation and safety of aircraft.

(l) arms, ammunition and explosives;

(m) drugs and poisons;

(n) mines and minerals (including oil fields, oil mining, geological surveys and natural gas);

(o) weights and measures;

(p) the administration or the management and control of the Federal Government or any of its agencies;

(q) subject to the provisions of this Constitution, the operation and interpretation of this Constitution in so far as it affects the Federal Government or any of its agencies;

(r) any action or proceeding for a declaration or injunction affecting the validity of any executive or administrative action or decision by the Federal Government or any of its agencies; and

(s) such other jurisdiction civil or criminal and whether to the exclusion of any other court or not as may be conferred upon it by an Act of the National Assembly;

Provided that nothing in the provisions of paragraphs (p), (q) and (r) of this subsection shall prevent a person from seeking redress against the Federal Government or any of its agencies in an action

for damages, injunction or specific performance where the action is based on any enactment, law or equity.

The operative words from the above provision of the Constitution are clear. It says the Federal High Court “shall have and exercise jurisdiction to the exclusion of any other court in civil causes and matters” relating to each of the item listed above. Although the words of the constitution are very clear to that extent, almost all of the items listed above have generated serious controversies with respect to the exact nature or scope of the jurisdiction of the Federal High Court in relation to State High Courts on the same or similar matters. Few examples will suffice.

In *Nepa v. Edeghero (2002)*<sup>48</sup> the Supreme Court while interpreting the provisions of section 251 (1) (p)(q)(r) & (s) on the exclusive jurisdiction of the Federal High Court in matters affecting or relating to the Federal Government and its agencies held that Federal High Court will have exclusive jurisdiction in all matters or causes affecting or involving the Federal Government or any of its agencies, notwithstanding the nature of the claims or status of the parties. But in the subsequent cases of *Grace Jack v. University of Agriculture Makurdi (2004)*<sup>49</sup> and *Onuorah v. KRPC Ltd (2005)*<sup>50</sup>, the Supreme Court, without overruling itself in the earlier case of *Nepa v. Edeghero (2002)*, held that where the dispute involving a person and the Federal Government or its agencies relates to simple contract or any breach thereof, it is the High Court of a State and not the Federal High Court that will have jurisdiction. In other words, it does follow conclusively in all cases that only the Federal High Court will have exclusive jurisdiction merely because the Federal Government or any of its agencies is present in the matter or merely because the *res* relates to an issue where the Federal High Court has an exclusive jurisdiction. Another case where the jurisdictions of the Federal High Court had been extensively scrutinized and reviewed by the Supreme Court was the case of *NDIC v. Okem Enterprises Ltd (2004)*<sup>51</sup> where the provision of section 251 (1) (d) of the 1999 Constitution had been interpreted. Before the decision of the Supreme Court in this case, the position of the law as was held by several cases<sup>52</sup> was that the State High Court with its status of unlimited jurisdiction under the 1979 Constitution had jurisdiction over all banking matters including those with which the Federal High Court had or was thought to have exclusive jurisdiction. The Supreme Court after reviewing all the previous cases beginning from *Jamma Steel Structures v. ACB Ltd (1973)*, supra, then came to the conclusions that may be summarized as follows:

- (i) As opposed to its traditional jurisdiction as a mere revenue court in the past, the 1999 Constitution has now conferred wider jurisdiction on the Federal High Court to the exclusion of other courts, hence all the previous case law delimiting the jurisdiction

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<sup>48</sup> Supra

<sup>49</sup> Supra

<sup>50</sup> Supra

<sup>51</sup> Supra

<sup>52</sup> Especially the case of *Jammal Steel Structures v. A.C.B (1973)* All N.L.R. (Pt. 1) where the Supreme Court upheld the unlimited status of the Jurisdiction of the State High Court against the exclusive jurisdiction of the Federal Revenue Court at the time.

- of the Federal High Court on the matters now clearly set under section 251 (1) of the 1999 Constitution are now spent forces
- (ii) In view of the clear proviso to the provision of section 251 (1) (d) of the 1999 Constitution, only the Federal High Court now has exclusive jurisdiction over all matters preceding the proviso under that subsection (1) (d);
  - (iii) In view of the proviso to the provision of section 251 (1) (d) of the 1999 Constitution and which proviso was not contained under section 230 (1) (d) of the 1979, State High Courts no longer have exclusive jurisdiction in claims between individual customers and their banks in respect of banking transactions;
  - (iv) Both the State High Court and Federal High Court now have concurrent jurisdiction in claims between individual customers and their banks in respect of banking transactions.

### 3.3.2 (b) Admiralty Jurisdiction

Admiralty jurisdiction of the Federal High Court covers generally claims for loss or damage to goods carried in ships or any claim arising out of any claim relating to the carriage of goods in ships. Prior to the coming into force of the 1999 Constitution, the exact nature and scope of the admiralty jurisdiction of the Federal High Court was also a matter of a serious controversy. For examples, the Nigerian Supreme Court in the case of *American International Insurance Company (A.I.I.C.O) v. Ceekay Traders Ltd (1981)* held that the Federal High Court had exclusive jurisdiction in all admiralty matters pursuant to the combined provisions of sections 7(1)(b)(iii), 8 (1), 24 and 63 of the Federal High Court Act of 1973. However, in the subsequent case of *Savanah Bank v. Pan Atlantic (1987)* the same Supreme Court held that both the Federal and State High Courts have concurrent jurisdiction in admiralty matters, and that the provision of section 8 (1) of Federal High Court Act of 1973 which had ousted the jurisdiction of the State High Court in admiralty matters was inconsistent with the provision of section 236(1) of the 1979 Constitution which vested the State High Court with an unlimited jurisdiction. Meanwhile, it was the Admiralty Jurisdiction Act of 1991<sup>53</sup> which eventually ended the reference in Nigeria to the Administration of Justice Act of England 1956 for determining the scope of the admiralty jurisdiction of the Federal High Court in Nigeria.

Now in view of the clear provision of section 251 (1) (g) of the 1999 Constitution, coupled with the provisions of the Federal High Court Act as well as the Admiralty Jurisdiction Act of 1991(as amended), it is now beyond any doubt that the Federal High Court has an exclusive jurisdiction over all admiralty matters. See *Ports & Cargo Handling Services Company Ltd v. Migfo Nigeria Ltd (2012)*, supra, on the intricacies of the admiralty jurisdiction of the Federal High Court and cases where issues between parties may be mere issues of contractual relationship and over which the Federal High Court may not have exclusive jurisdiction or any jurisdiction at all.

### 3.3.2 (c) Criminal Jurisdiction

<sup>53</sup> Originally promulgated as ADMIRALTY JURISDICTION DECREE NO 59 OF 1991; ACT CAP. A 5 L.F.N. 2004. This was subsequently followed by the Decree 107 of 1993 which introduced the Admiralty Jurisdiction (Procedure Rules) 1993 to provide some guide for the prosecution and defence of admiralty proceedings in the court.

Like its civil jurisdiction earlier discussed, the criminal jurisdiction of the Federal High Court has also been fraught with controversies, especially before coming into force of the 1999 Constitution. For example, it was held by the Supreme Court in the case of *Jamma Steel Structures v. ACB Ltd (1973)*, supra, a case decided under the Federal High Court Act of 1973, that certain criminal offences relating to banking transactions ought to be prosecuted like every other crime in any appropriate State High Court and not the Federal High Court. In other words, it was held that the Federal High Court had no exclusive jurisdiction in such criminal cases. However, whatever doubt there was has now been settled by the clear provision of the 1999 Constitution.

Presently, the criminal jurisdiction of the Federal High Court is prescribed for under section 251 (2) of the 1999 Constitution thus:

(2) The Federal High Court shall have and exercise jurisdiction and powers in respect of treason, treasonable felony and allied offences.

Further, section 251 (3) provides:

(3) The Federal High Court shall also have and exercise jurisdiction and powers in respect of criminal causes and matters in respect of which jurisdiction is conferred by subsection (1) of this section. 252

Furthermore, section 7 (1)(r) and 7(2) of the Federal High Court Act 2004<sup>54</sup> (as amended) restates the above provisions of the Constitution and also conferred additional jurisdiction under section 7 (3) with respect to offences for which the Attorney General of the Federation may initiate criminal proceedings. With respect to the provision of section 251(3) above, all that can be said of the scope and extent of criminal jurisdiction of the Federal High Court therefore is that, the Federal High Court has jurisdiction in all criminal matters arising from or bothering on all matters over which it has exclusive civil jurisdiction under section 251(1) of the Constitution. In other words, the criminal jurisdiction of the Federal High Court will cover treason, offences in respect of taxation statutes, violation of provisions of the Companies and Allied Matters Act 2004 (CAMA); offences under the Customs and Excise Management Act 2004; offences concerning copyright, patent, designs, trademarks and merchandise marks, banking, foreign exchange and currency law; admiralty, insolvency, aviation and safety of aircraft, arms, ammunition and explosives, drugs and poisons, bankruptcy and insolvency, banking, foreign exchange and currency matters, and etcetera.

It must be pointed out however, that whilst section 251 (1) is unequivocal on the exclusivity of the civil jurisdiction of the Federal High Court on matters stated therein, there is no such exclusivity under section 251 (2) and (3) with respect to criminal matters. Thus, it cannot be said that the Federal High Court has exclusive criminal jurisdictions in all such matters listed above. Therefore, both the Federal High Court and the State High Court have concurrent jurisdiction in respect of criminal cases or matters arising from the civil jurisdiction of the Federal High Court

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<sup>54</sup> FEDERAL HIGH COURT ACT CAP. 134 L.F.N. 1990 (as amended); ACT CAP F12 L.F.N. 2004 (as amended).

under section 251(1) of the Constitution. In *Abass v. C.O.P (1998)*<sup>55</sup>, the Court of Appeal held that:

While section 230(1) of the 1979 Constitution confers exclusive jurisdiction on the Federal High Court in respect of civil causes and matters listed under sub-paragraphs (a)-(q) of the sub section, no such exclusive jurisdiction is conferred on the Federal High Court by section 230(1A) in respect of criminal cases specified therein. In other words, by literal interpretation of section 230 (1A), criminal matters can concurrently be tried by the Federal High Court and other courts conferred with criminal jurisdiction over the subject matter in dispute.

### **3.3.2 (e) Supervisory and Appellate Jurisdiction of the Federal High Court**

By virtue of section 7 (9) of the Federal High Court Act 2004, the Federal High Court being a Superior Court of Records, may exercise supervisory jurisdiction, by way of a judicial review, over inferior courts or tribunals in relation to acts and omissions of persons, bodies and institutions on subjects within the jurisdiction of the Federal High Court. Furthermore, by the provision of section 28 of the Federal High Court Act 2004 (as amended), the Federal High Court is vested with an appellate jurisdiction to hear and determine appeals from:

- a) Decisions of Appeal Tribunals established pursuant to the provisions of the Companies Income Tax Act 2004 and the Personal Income Tax Act;
- b) Decisions of the Customs, Immigration and Prison Services Boards under their relevant enabling statutes;
- c) Decisions of Magistrate Courts in respect of civil or criminal causes transferred to such courts pursuant to the provisions of the Federal High Court Act;
- d) Decisions of any other body established under any federal statutes on matters over which the Federal High Court may exercise such jurisdiction.

## **3.4 The National Industrial Court of Nigeria (ss. 254A - 254F)<sup>56</sup>**

### **3.4.1 Establishment and Composition**

The National Industrial Court of Nigeria (NIC) was established in 1976 by the Trade Disputes Act,<sup>57</sup> and was in 2010<sup>58</sup> elevated expressly in the Constitution as a superior court of record and of

<sup>55</sup> (1998) 12 NWLR (Pt. 577) 308 at 318, per Muhammad J.C.A.

<sup>56</sup> As earlier pointed out, the National Industrial Court (NIC) was only introduced into the 1999 Constitution (as amended) as a superior court of record pursuant to the Constitution of the Federal Republic of Nigeria (Third Alteration) Act, 2010.

<sup>57</sup> Cap 432, Laws of the Federation of Nigeria, 1990

coordinate jurisdiction with the Federal High Court, the various State High Courts and other Courts of coordinate jurisdiction with a well-defined exclusive jurisdiction and powers as contained in the Constitution. Section 254 (a) of the 1999 Constitution (as amended) or the Third Alteration Act 2010 establishes the NIC thus:

254A- (1) There shall be a National Industrial Court of Nigeria.

(2) The National Industrial Court shall consist of:

(a) President of the National Industrial Court; and

(b) such number of Judges of the National Industrial Court as may be prescribed by an Act of the National Assembly.

Furthermore, for the composition of the Court to exercise its jurisdiction, section 254E provides thus:

254 E-( 1) For the purpose of exercising any jurisdiction conferred upon it by this Constitution or any other law, the National Industrial Court shall be duly constituted if it consists of a single Judge or not more than three Judges as the President of the National Industrial Court may direct.

(2) For the purpose of exercising its criminal jurisdiction, the President or the Court may hear and determine or assign a single Judge of the Court to hear and determine such matter.

(3) For the purpose of exercising any jurisdiction conferred upon it by the Constitution or any other law. the Court may. if it thinks it expedient to do so or in a manner prescribed under any enactment, law or rules of court, call in the aid of one or more assessors specially qualified to try and hear the cause or matter wholly or partly with the assistance of such assessors.

(4) For the purpose of subsection (3) of this section, an assessor shall be a person who is qualified and experienced in his field of specialization and who has been so qualified for a period of not less than ten years.

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<sup>58</sup> Pursuant to the Constitution of the Federal Republic of Nigeria (Third Alteration) Act, 2010.

Aside the Constitution, there is also the National Industrial Court Act 2006<sup>59</sup> and the National Industrial Court of Nigeria (Civil Procedure) Rules 2016. Both regulate the practice and procedure of the NIC generally.

### 3.4.3 Jurisdiction

Section 254 (C) (1 – 4) of the 1999 Constitution (as amended) generally confers on the NIC the jurisdiction to the exclusion of other courts of coordinate jurisdiction to adjudicate over civil and criminal causes and matters relating to labour, industrial trade union and industrial relations and environment and conditions of work, health, safety and welfare of labor and matters related and incidental thereto amongst others. Prior to the enactment of the Third Alteration Act of 2010, the Federal High Court, High Courts of the States and the High Court of the Federal Capital Territory, Abuja all have concurrent jurisdiction with the National Industrial Court in its civil and criminal jurisdiction. See the case of *Attorney General of Oyo State v. Nigeria Labour Congress (2003)*.<sup>60</sup> The NIC is now a superior court of records with very extensive exclusive civil jurisdiction. Specifically, section 254 (C) provides thus:

254 C- (I) Notwithstanding the provisions of sections 251, 257, 272 and anything contained in this Constitution and in addition to such other jurisdiction as may be conferred upon it by an Act of the National Assembly, the National Industrial Court shall have and exercise jurisdiction to the exclusion of any other court in civil causes and matters

(a) relating to or connected with any labour, employment, trade unions, industrial relations and matters arising from workplace, the conditions of service, including health, safety, welfare of labour, employee, worker and matters incidental thereto or connected therewith;

(b) relating to, connected with or arising from Factories Act, Trade Disputes Act, Trade Unions Act, Labour Act, Employees' Compensation Act or any other Act or Law relating to labour, employment, industrial relations,

workplace or any other enactment replacing the Acts or Laws;

(c) relating to or connected with the grant of any order restraining any person or body from taking part in any strike, lock-out or any

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<sup>59</sup> Act (No 1) 2006. Part II of the Trade Dispute Act 1976 which previously established the NIC has since been repealed by section 53 (1) of the 2006 Act. Recently, the President of the NIC, Hon. Justice Babatunde Adeniran Adejumo, in exercise of his powers under the respective provisions of section 254F (1) of the 1999 Constitution (as amended by the Third Alteration Act, 2010) and section 36 of the NIC Act 2006, revoked the NIC Rules 2007 and Practice Direction 2012 and replaced them with the National Industrial Court of Nigeria (Civil Procedure) Rules 2016.

<sup>60</sup> (2003) 8 NWLR (Pt. 821) 1 at 35

industrial action, or any conduct in contemplation or in furtherance of a strike, lock-out or any industrial action and matters Connected therewith or related thereto;

(d) relating to or connected with any dispute over the interpretation and application of the provisions of Chapter IV of this Constitution as it relates to any employment, labour, industrial relations, trade unionism, employer's association or any other matter which the Court has jurisdiction to hear and determine;

(e) relating to or connected with any dispute arising from national minimum wage for the Federation or any part thereof and matters connected therewith or arising there from;

(f) relating to or connected with unfair labour practice or international best practices in labour, employment and industrial relation matters;

(g) relating to or connected with any dispute arising from discrimination or sexual harassment at workplace;

(h) relating to, connected with or pertaining to the application or interpretation of international labour standards;

(i) connected with or related to child labour, child abuse, human trafficking or any matter connected therewith or related thereto;

(j) relating to the determination of any question as to the interpretation and application of any

(i) collective agreement;

(ii) award or order made by an arbitral tribunal in respect of a trade dispute or a trade union dispute;

(iii) award or judgment of the Court;

(iv) term of settlement of any trade dispute;

(v) trade union dispute or employment dispute as may be recorded in a memorandum of settlement;

(vi) trade union constitution, the constitution of an association of employers or any association relating to employment, labour, industrial relations or work place;

(vii) dispute relating to or connected with any personnel matter arising from any free trade zone in the Federation or any part thereof;

(k) relating to or connected with disputes arising from payment or nonpayment of salaries, wages, pensions, gratuities, allowances, benefits and any other entitlement of any employee, worker, political or public office holder, judicial officer or any civil or public servant in any part of the Federation and matters incidental thereto;

(l) relating to

(i) appeals from the decisions of the Registrar of Trade Unions, or matters relating thereto or connected therewith;

(ii) appeals from the decisions or recommendations of any administrative body or commission of enquiry, arising from or connected with employment, labour, trade unions or industrial relations; and

(iii) such other jurisdiction, civil or criminal and whether to the exclusion of any other court or not, as may be conferred upon it by an Act of the National Assembly;

(m) relating to or connected with the registration of collective agreements.

(2) Notwithstanding anything to the contrary in this Constitution, the National Industrial Court shall have the jurisdiction and power to deal with any matter connected with or pertaining to the application of any international convention, treaty or protocol of which Nigeria has ratified relating to labour, employment, workplace, industrial relations or matters connected therewith.

(3) The National Industrial Court may establish an Alternative Dispute Resolutions Centre within the Court premises on matters which jurisdiction is conferred on the court by this Constitution or any Act or Law:

Provided that nothing in this subsection shall preclude the National Industrial Court from entertaining and exercising appellate and supervisory jurisdiction over an arbitral tribunal or commission, administrative body, or board of inquiry in respect of any matter that the National Industrial Court has jurisdiction to entertain or any other matter as may be prescribed by an Act of the National Assembly or any Law in force in any part of the Federation.

(4) The National Industrial Court shall have and exercise jurisdiction and powers to entertain any application for the enforcement of the award, decision, ruling or order made by any

arbitral tribunal or commission, administrative body, or board of inquiry relating to, connected with, arising from or pertaining to any matter of which the National Industrial Court has the jurisdiction to entertain.

(5) The National Industrial Court shall have and exercise jurisdiction and powers in criminal causes and matters arising from any cause or matter of which jurisdiction is conferred on the National Industrial Court by this section or any other Act of the National Assembly or by any other law.

(6) Notwithstanding anything to the contrary in this Constitution, appeal shall lie from the decision of the National Industrial Court from matters in sub-section 5 of this section to the Court of Appeal as of right.

From foregoing elaborate provisions of the Constitution, it crystal clear that the NIC has an extensive exclusive civil jurisdiction within the range of labour and all labour or industrial related issues, and much like the Federal High Court and the High Courts of the States – with which the NIC shares coordinate jurisdiction and powers as a superior court of records in Nigeria. Although several of the above items have not been specifically tested in court, it is abundantly clear that the NIC has exclusive jurisdiction in all such matters. Recently, the Supreme Court has affirmed the exclusive jurisdiction of the NIC on labour matters generally and specifically on master-servant relationship. In *Coca-Cola v. Mrs. Titilayo Akinsanya (2017)*<sup>61</sup>, the Court held in summary that by virtue of Section 254C of the 1999 Constitution (as amended), the NIC has exclusive jurisdiction over disputes arising from Master/Servant relationships.

Although the NIC has an exclusive civil jurisdiction in all the matters listed under section 254 C above, it is clear from the provision of section 254C (5) that the criminal jurisdiction of the court arising from all such matters is not exclusive. In other words, and much like the Federal High Court, the NIC has concurrent criminal jurisdiction with all court with which it shares coordinate powers and authority. Section 254C (5) and (6) of the 1999 Constitution provides thus:

(5) The National Industrial Court shall have and exercise jurisdiction and powers in criminal causes and matters arising from any cause or matter of which jurisdiction is conferred on the National Industrial Court by this section or any other Act of the National Assembly or by any other law.

(6) Notwithstanding anything to the contrary in this Constitution, appeal shall lie from the decision of the National Industrial Court from matters in sub-section 5 of this section to the Court of Appeal as of right.

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<sup>61</sup> Coca-Cola v. Mrs. Titilayo Akinsanya (2017) SC/542/13. Judgement was delivered by the Supreme Court on Friday, 30th June, 2017.

### **3.4.4 Appellate and Supervisory Jurisdiction**

By virtue of section 254C (3) and (4), the NIC also has appellate and supervisory jurisdiction over decisions or arbitral tribunals or commissions, administrative body, board of enquiries, industrial panels, in all matters relating to, connected with, arising from or pertaining to any matter of which the NIC has jurisdiction.

## **3.5 The High Court of the Federal Capital Territory (FCT), Abuja (ss 255 -257)**

### **3.5.1 Establishment and Composition**

The High Court of the Federal Capital Territory is established pursuant to the provision of section 255(1) of the Constitution thus:

255. (1) There shall be a High Court of the Federal Capital Territory, Abuja.

(2) The High Court of the Federal Capital Territory, Abuja shall consist of –

(a) a Chief Judge of the High Court of the Federal Capital Territory, Abuja; and

(b) such number of Judges of the High Court as may be prescribed by an Act of the National Assembly.

### **3.5.2 Jurisdiction**

The jurisdiction of the High Court of the FCT is derived under section 257 (1) of the Constitution thus:

257. (1) Subject to the provisions of section 251 and any other provisions of this Constitution and in addition to such other jurisdiction as may be conferred upon it by law, the High Court of the Federal Capital Territory, Abuja shall have jurisdiction to hear and determine any civil proceedings in which the existence or extent of a legal right, power, duty, liability privilege, interest, obligation or claim is in issue or to hear and determine any criminal proceedings involving or relating to any penalty, forfeiture, punishment or other liability in respect of an offence committed by any person.

(2) The reference to civil or criminal proceedings in this section includes a reference to the proceedings which originate in the High Court of the Federal Capital Territory, Abuja and those which are brought before the High Court of the Federal Capital Territory,

Abuja to be dealt with by the Court in the exercise of its appellate or supervisory jurisdiction.

258. The High Court of the Federal Capital Territory, Abuja shall be duly constituted if it consists of at least one Judge of that court.

From the above, it is clear that the High Court of the FCT has original jurisdiction in civil and criminal matters as well as appellate and supervisor jurisdictions over inferior courts or tribunals, all within its domain. By domain it is meant the Federal Capital Territory, Abuja. This point had been taken by the Supreme Court in the case of *Dalhatu v. Turaki (2003)*<sup>62</sup> where it was observed thus:

*I have taken pains to discuss this judgement on territorial jurisdiction of a court in view of recent developments whereby litigants rather than suing in the proper courts come to the High Court of the Federal Capital Territory, Abuja. I think their Lordships of the High Court of the Federal Capital Territory ought to be circumspect before deciding whether or not it is wise and correct to exercise jurisdiction in matters outside the territory of the Federal Capital Territory. The Court, unlike the Federal High Court has jurisdiction only in matters arising out of the Federal Capital Territory, Abuja. Order 10 Rule 4 is only to determine the proper judicial division of the court where a matter can be heard and determined.*

Further, by the provision of section 1 of the Federal Capital Territory, Abuja (Appeal from Area Court) Act<sup>63</sup>, the High Court of the Federal Capital Territory has an exclusive appellate jurisdiction to hear appeals from decisions, both civil and criminal, of the Upper Area Court or any Area Court Grade 1 or 11. Also, by virtue of Order 44 of the High Court of the Federal Capital Territory Abuja (Civil Procedure Rules) the High Court of the FCT has jurisdiction to hear appeals from the decisions of magistrate courts within the FCT, Abuja. Similarly, the High Court of the FCT, Abuja just like the High Courts of the States, has general supervisory jurisdiction over inferior courts and tribunals and may grant order of mandamus, certiorari and injunctions, all by way of judicial review.

### **3.6 The Sharia Court of Appeal of the Federal Capital Territory, Abuja (ss. 260 – 264)**

#### **3.6.1 Establishment and Composition**

The Sharia Court of Appeal of the Federal Capital Territory (FCT), Abuja is established pursuant to the provision of section 260 of the Constitution thus:

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<sup>62</sup> (2003) 7 S.C 1 at 13-14

<sup>63</sup> CAP 127 L.F.N 1990

260. (1) There shall be a Sharia Court of Appeal of the Federal Capital Territory, Abuja. (2) The Sharia Court of Appeal of the Federal Capital Territory, Abuja shall consist of -

(a) a Grand Kadi of the Sharia Court of Appeal; and

(b) such number of Kadis of the Sharia Court of Appeal as may be prescribed by an Act of the National Assembly.

263. For the purpose of exercising any jurisdiction conferred upon it by this Constitution or any Act of the National Assembly, the Sharia Court of Appeal shall be duly constituted if it consists of at least three Kadis of that Court.

### **3.6.2 Jurisdiction**

On the jurisdiction of the Court, section 262 of the Constitution provides thus:

262. (1) The Sharia Court of Appeal shall, in addition to such other jurisdiction as may be conferred upon it by an Act of the National Assembly, exercise such appellate and supervisory jurisdiction in civil proceedings involving questions of Islamic personal law.

(2) For the purpose of subsection (1) of this section, the Sharia Court of Appeal shall be competent to decide –

(a) any question of Islamic personal law regarding a marriage concluded in accordance with that law, including a question relating to the validity or dissolution of such a marriage or a question that depends on such a marriage and relating to family relationship or the guardianship of an infant;

(b) where all the parties to the proceeding are Muslims, any question of Islamic personal law regarding a marriage, including the validity or dissolution of that marriage, or regarding family relationship, a foundling or the guardianship of an infant;

(c) any question of Islamic personal law regarding a wakf, gift, will or succession where the endower, donor, testator or deceased person is a Muslim;

(d) any question of Islamic personal law regarding an infant, prodigal or person of unsound mind who is a Muslim or the maintenance or the guardianship of a Muslim who is physically or mentally infirm; or

(e) where all the parties to the proceedings, being Muslims, have requested the court that hears the case in the first instance to

determine that case in accordance with Islamic personal law, any other question.

From the opening provision section 262 (1) above, it is clear that the Shariah Court of Appeal of the FCT Abuja is basically an appellate and supervisory court on matters of Islamic personal law arising from appeals from the decisions of Upper Area Court and any Area Court grade I or II in any civil proceedings involving question of Islamic personal law. And by matters or questions of Islamic personal law, it does not necessarily mean matters involving Muslims or relating generally to Islam. In other words, matters or questions of Islamic personal law are definitive and not at large. The Supreme Court in the case of *Abdul Salam v. Salawu (2002)* made the following clarifications regarding the point.

*Where however the constitution clearly confers jurisdiction, as in the case now at hand, the power of court cannot be vitiated merely because the matter concerns parties who are Muslims or the case is of Muslim law in so far as the matter is not of Islamic personal law. The Islamic personal law (must be of Maliki School) governing matters enumerated in section 262 of the Constitution of 1999 and section 242 of 1979 Constitution...*<sup>64</sup>

Further, Muhammed Uwais, CJN, held in his concurring judgement thus:

*On the argument that the nature of the dispute between the parties and their status as Muslims, are matters pertaining to Islamic personal law under the 1979 Constitution I am unable to agree. The phrase "Islamic law" is not defined under the 1979 Constitution although the Constitution made reference in Section 242(2) thereof to certain aspects of it, namely marriage, family relationship, guardian of infant, foundling, wakf, gift, will or succession and prodigal or person of unsound mind. None of these subjects covers the appointment of an Imam or Naibi or succession to such office.*<sup>65</sup>

In that case the Plaintiff had instituted a case at the High Court of Kogi State praying, amongst others, for declaration of himself as the person properly nominated as the Chief Imam of Ikengwe Central Mosque. Upon appeals all through the lower courts up to the Supreme Court the issue of jurisdiction was raised for the first time at the Supreme Court to the effect that the trial High Court had no jurisdiction to hear and determine the case in the first instance. It was contended for the appellants that since the parties were Muslims and the issue of who become an Imam of a mosque was an issue purely of Islamic Law the High Court ought not to have assumed jurisdiction in the matter. The contention was rejected by the Supreme Court on the ground that the issue of who become an Imam of a Muslim mosque was not covered in the specific items referred to as matters of Islamic personal law under section 262 of the 1999 Constitution. In

<sup>64</sup> (2002) 6SC (Pt III) 196, per Belgore JSC at p.202

<sup>65</sup> *Ibid.*, at p. 204

*Usman v. Umaru (1992)*<sup>66</sup> the Supreme Court per Muhammed Uwais JSC, also drew a clear distinction between the terms “Moslem personal law” and “Moslem law” in the following words:

*There is a difference between “Moslem personal law” and “Moslem law”. The former is as defined by section 2 (1) of the Area Court Edict 1968 and section 2 of the Sharia Court of Appeal Law, CAP 122 Laws of Northern Nigeria, 1963, while “Moslem law” is the totality of Islamic law which includes, but is wider in scope than, the limited area defined as “Moslem personal law.”*<sup>67</sup>

Furthermore, in a later case of *Usman v. Kareem (1995)*<sup>68</sup> the Supreme Court held that a case of a gift between Muslims falls within the contemplation of what constitutes subject of Islamic personal law under section 242(2) of the 1979 Constitution, and that an appeal will thereby lie appropriately regarding such matters from the Area Court to the Sharia Court of Appeal of the relevant case. Also, in *Abuja v. Bizi (1989)*<sup>69</sup>, a case involving an inheritance under Islamic law, it was held that the Sharia Court of Appeal had the jurisdiction to hear and determine an appeal arising from the decision of the Area Court.

Finally, it should also be noted that matters or issues of Islamic personal law are purely civil matters and do not extend to any criminal matter whatsoever. Thus, the Sharia Court of Appeal does not have any appellate or supervisory jurisdiction whatsoever in criminal cases.

### **3.7 The Customary Court of Appeal of the Federal Capital Territory (FCT), Abuja (ss. 265 – 269)**

#### **3.7.1 Establishment and Composition**

Section 265 of the 1999 Constitution provides for the establishment of the Customary Court of Appeal of the FCT, Abuja thus:

265. (1) There shall be a Customary Court of Appeal of the Federal Capital Territory, Abuja.

(2) The Customary Court of Appeal of the Federal Capital Territory, Abuja shall consist of -

(a) a President of the Customary Court of Appeal; and

(b) such number of Judges of the Customary Court of Appeal as may be prescribed by an Act of the National Assembly.

268. For the purpose of exercising any jurisdiction conferred upon it by this Constitution or any Act of the National Assembly, the

<sup>66</sup> (1992) 7 NWLR (Pt. 254) 377 at 407

<sup>67</sup> *Ibid.*, p. 407

<sup>68</sup> (1995) 2 NWLR (Pt. 379) 541.

<sup>69</sup> (1989) 5 NWLR (Pt 119) 120

Customary Court of Appeal shall be duly constituted if it consists of at least three Judges of that Court.

### 3.7.2 Jurisdiction

On the jurisdiction of the of the Customary Court of Appeal of the FCT, Abuja section 267 of the 1999 Constitution provides thus:

267. The Customary Court of Appeal of the Federal Capital Territory, Abuja shall, in addition to such other jurisdiction as may be conferred upon by an Act of the National Assembly Exercise such appellate and supervisory jurisdiction in civil proceedings involving questions of Customary law.

From the above, it is clear that the Customary Court of Appeal of the FCT, Abuja is basically an appellate and supervisory court on matters of customary law arising from appeals from customary courts. On the nature of the appellate or supervisory jurisdiction of the Sharia Court of Appeal and the Customary Court of Appeal, the Court in *Okahe v. Gov, Bendel State (1990)*<sup>70</sup> held that:

*The purpose of setting up of the Shariah Court of Appeal and the Customary Court of Appeal of any State that desires either or both is to give these two superior courts of record restrictive appellate and supervisory jurisdiction in respect of Islamic personal law in the case of the former and customary law in respect of the latter. In view of this, there can be no justification for interpreting subsection (2) of section 279 of the Constitution to enlarge the scope of the restrictive jurisdiction granted the Customary Court of Appeal. (Attorney General of the Federation v. A-G. Imo State and Ors (1982) 12 S.C. 274 applied).*

It must be noted that in Northern Nigeria it is generally the Area Court which occupies the position of what are generally Customary Courts in Southern Nigeria. Under the High Court Law of Northern Nigeria<sup>71</sup>, both the native law and customs were defined to include Islamic law. Thus, Islamic law is part of the native law and custom over which an Area Court in the North may exercise jurisdiction. But can it really be said that Islamic law is customary law? In *Usman v. Umaru (1992)*<sup>72</sup>Bello, CJN in his judgement stated unequivocally that customary law is incapable of including Islamic Law. The learned Justice of the Supreme Court went ahead to add that customary law is unwritten law recognised as a law by the members of an ethnic group while Islamic law is written in the Holy Qur'an and the numerous books of *Hadith*. Also, in the subsequent case of *Alkamawa v. Bello (1998)*<sup>73</sup>, the Supreme Court, *per Wali JSC*, held that Islamic law is not the same as customary law as it does not belong to any particular tribe. The

<sup>70</sup> (1990) 4 NWLR (Pt. 144) 327

<sup>71</sup> Laws of Norther Nigeria 1963 CAP 49

<sup>72</sup> (1992) 7 NWLR (PT 254) p. 401 para D.

<sup>73</sup> (1998) 8 NWLR PT 561 p. 182 para C.

learned Justice then concluded by stating that Islamic law is a complete system of universal law, more certain, permanent and even universal than the English Common law.

### **3.8 High Court of a State (ss 270 – 274)**

#### **3.8.1 Establishment and Composition**

For the establishment of the High Court for each of the present 36 States of the Federation of Nigeria section 270 (1) of the 1999 Constitution generally provides thus:

270. (1) There shall be a High Court for each State of the Federation.

(2) The High Court of a State shall consist of -

(a) a Chief Judge of the State; and

(b) such number of Judges of the High Court as may be prescribed by a Law of the House of Assembly of the State.

And for its proper composition to exercise the jurisdiction section 273 of the Constitution provides thus:

273. For the purpose of exercising any jurisdiction conferred upon it under this Constitution or any law, a High court of a State shall be duly constituted if it consists of at least one Judge of that Court.

#### **3.8.2 Original Jurisdiction**

Generally, a High Court of a State has original civil and criminal jurisdiction as well as appellate and supervisory jurisdiction. A High Court of a State also has concurrent jurisdiction with other Courts of coordinate jurisdiction such as the Federal High Court, National Industrial Court and the High Court of the Federal Capital Territory, Abuja. For its original jurisdiction, section 272 (1) of the 1999 Constitution provides thus:

272. (1) Subject to the provisions of section 251 and other provisions of this Constitution, the High Court of a State shall have jurisdiction to hear and determine any civil proceedings in which the existence or extent of a legal right, power, duty, liability, privilege, interest, obligation or claim is in issue or to hear and determine any criminal proceedings involving or relating to any penalty, forfeiture, punishment or other liability in respect of an offence committed by any person.

(2) The reference to civil or criminal proceedings in this section includes a reference to the proceedings which originate in the High

Court of a State and those which are brought before the High Court to be dealt with by the court in the exercise of its appellate or supervisory jurisdiction.

In addition to the Constitution, there are also laws<sup>74</sup> of individual State as well as their peculiar rules of Court for the on the jurisdiction of the High Court. By the provisions above, it is clear that save for matters within the exclusive jurisdiction of the Federal High Court under section 251 of the Constitution, the original jurisdiction of a High Court in civil and criminal matters and quite broad and covers matters provided for under the Law of the State or any enactment of the National Assembly.

Further to the above provision of section 272 of the 1999 Constitution, section 286 (1)(a) also vests the High Court of the Federation with an expansive jurisdiction on federal causes. In other words, a cause or matter which is a subject of an Act of the National Assembly may be litigated upon at the High Court of State subject to the provisions of the Constitution.<sup>75</sup> Put differently, an Act of the National Assembly may also confer jurisdiction on the High of a State regarding federal causes.<sup>76</sup>

### 3.8.3 Concurrent Jurisdiction

Concurrent jurisdiction basically relates to exercise of jurisdiction over the same subject matter by courts of coordinate jurisdiction. Does this mean conflict? Not necessarily so. It simply means that each court, though autonomous and independent of each, could exercise jurisdiction over the same subject matter that are not exclusive to each. In Nigeria, the High Court of the States, being Courts with coordinate jurisdiction with the Federal High Court, National Industrial Court and the High Court of the FCT, Abuja do exercise concurrent jurisdiction over certain subjects that are not mutually exclusive to each. Subject common subjects include application for the enforcement of fundamental human rights<sup>77</sup> as well as pure contract issues or dispute arising from banker customer relationship. In the case of *Bronik Motors Ltd v. Wema Bank Ltd (1983)*, supra, an attempt by the defendant to oust the jurisdiction of the High Court of a State was struck down by the Supreme Court, holding that section 8 of the Federal High Court 1973 (as amended) which purported to oust the jurisdiction of the State High Court was null and void, for being inconsistent with section 236(1) of the 1979 Constitution. The Supreme Court then conclude that where both the Federal High Court and a State High Court exist in a State, they both have concurrent

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<sup>74</sup> For example, the High Court Law, Cap H3, Laws of Lagos State of Nigeria, 2003 (as amended by High Court (Amendment Law) 2012. It is pursuant to this Law that the Lagos State High Court (Civil Procedure) Rules 2012 have also been made by the Chief Judge of the State.

<sup>75</sup> Attorney General Ondo State v. Attorney General Federation (2002) 9 NWLR (Pt. 772) 222; (2002) 6 S.C. (Pt. 1) 1

<sup>76</sup> For examples: The Economic and Financial Crimes (Establishment) Act 2002, Cap E1, L.F.N 2004; Corrupt Practices and Other Related Offences Act 2000, Cap C31, L.F.N 2004.

<sup>77</sup> The rights guaranteed under Chapters 4 of the Constitution. Order II Rule I of the Fundamental Rights Enforcement Procedure Rules 2009 clearly vests jurisdiction in the High Court of a State for the ventilation of such issue of rights. Today, such jurisdiction is now concurrently shared with the Federal High Court and the National Industrial Court.

jurisdiction in matters pertaining to fundamental human rights. This was also the position of the Supreme Court in the cases of *Tukur v. Government of Gongola State (1989)*, supra, and *Grace Jack v. University of Agriculture Makurdi (2004)*, supra. It should be noted also that the criminal jurisdiction of the Federal High Court under section 251 (2) and (3) of the 1999 Constitution is not exclusive but also exercised concurrently with the State High Courts.

### 3.8.4 Appellate and Supervisory Jurisdiction

In exercise of its appellate jurisdiction, section 272 (2) confers the following powers on the High Court of a State.

(2) The reference to civil or criminal proceedings in this section includes a reference to the proceedings which originate in the High Court of a State and those which are brought before the High Court to be dealt with by the court in the exercise of its appellate or supervisory jurisdiction.

Flowing from the above, it is clear that a High Court of a State has both appellate and supervisory jurisdiction on appeals from decisions of all inferior courts within its jurisdiction or as may be prescribed by any law. However, section 277 and 288 of the Constitution also delimit the appellate and supervisory jurisdiction of the High Court of a State by providing that civil appeals from decisions of an Area Court involving a question of Muslim personal law shall go to the Sharia Court of Appeal whilst those arising from customary law shall go to the Customary Court of Appeal respectively. Further to the foregoing provisions of the 1999 Constitution, the respect Laws of individual States also confer appellate and/or supervisory jurisdiction on the State High Courts. For example, section 28 of the High Court Law of Lagos State provides that the Court shall have appellate jurisdiction to hear and determine all appeals from the decisions of Magistrate Courts of the State in civil and criminal matters. It must be noted that unlike the case where a single judge is competent to sit and hear and determine any cause in the exercise of the original jurisdiction of the Court, the law and practice regarding the required number of judges for appellate jurisdiction differ from state to state. In some States such as Lagos State, a single judge is ordinarily competent except as may be directed otherwise by the Chief Judge of the State.<sup>78</sup> In most Norther States on the contrary, the exercise of the appellate jurisdiction of a High Court is by a panel of more than a judge, usually three in numbers.<sup>79</sup>

The supervisory jurisdiction conferred on the High Court under section 272 (2) of the Constitution quoted above is exercisable over inferior courts, tribunals, executive or statutory

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<sup>78</sup> Section 29(2) of the High Court of Lagos State envisages a circumstance where three judges may have to sit as may be directed by the Chief Judge.

<sup>79</sup> *Billiri v. Billiri* (1991) 4 NWLR (Pt. 186) 473

bodies, by way of issuing prerogative orders of certiorari, prohibition, and mandamus amongst others.<sup>80</sup>

### 3.8.5 Criminal Jurisdictions

By the provisions of sections 272 (1) and (2) of the Constitution, a High Court of a State is also vested with jurisdiction on all criminal matters subject only exclusive jurisdiction of the Federal High Court under section 251 and other provisions of the Constitution. Essentially, the criminal jurisdiction of the High Court of a State can be divided into three. One, original jurisdiction to hear and determine all indictable offences contained in an Information pursuant to provisions of the criminal law of the State or any other enactment. Two, to hear and determine criminal appeals from decisions of inferior courts within its jurisdiction, such as Magistrate Courts or Area Courts or other special Offences courts. Three, to hear and determine cases arising from federal offences. At any rate, the question whether or not a High Court of a State has jurisdiction over Federal offences was settled in the case of *Bronik Motors v. Wema Bank Ltd (1983)*, supra. In that case it was contended for the appellant that the Constitution of 1979 clearly demarcated the jurisdiction of State and Federal High Court, and that while State High Courts were restricted to State offences, the Federal High Court was restricted to federal offences. The Supreme Court rejected the appellants contention and held that both the State and the Federal High Courts have concurrent jurisdictions on such matters. For example, section 18 of the Economic and Financial Crimes Act of 2002, states that the Federal High Court or the High Court of a State has jurisdiction to try offences under this Act. It follows therefore that the Attorney General of the Federation or anyone acting on his behalf can initiate criminal proceedings in the High Court of a State in respect of such federal offences.

### 3.9 Sharia Court of Appeal of a State (ss. 275-279)

It is enough to simply state here that everything said of the composition and jurisdiction of the Sharia Court of Appeal of the FCT, Abuja above applies *mutatis mutandis* to the Sharia Court of Appeal of a State. The only fundamental difference is their distinct sphere of authority, territorial jurisdictions. In other words, each court has its jurisdiction restricted only to its territory. In addition to that, section 275 (1) of the 1999 Constitution makes it clear that the establishment of the Sharia Court of Appeal of a State is voluntary and open only to any State that desires or “requires” it. Quite strangely and inspite of the sizeable population of Muslims in the Southern States of Nigeria, there is no any Sharia Court of Appeal in any State of the Southern States of Nigeria as yet. This has made it difficult for Muslims who married under Islamic law to have convenient access to forum (courts) to determine the validity of their marriage and other issues of Islamic law or personal law covered under section 262 of the 1999 Constitution. There are only Sharia Courts of Appeal in the Northern States of Nigeria for now.

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<sup>80</sup> In *Okeahialam v. Nwamara* (2003) 12 NWLR (Pt. 835) 597, it was held that a High Court of a State has inherent jurisdiction to control all inferior courts in a supervisory capacity. It should be noted that appellate capacity is difference from supervisory capacity.

### **3.10 Customary Court of Appeal of a State (ss. 280-284)**

It is enough to simply state here that everything said of the composition and jurisdiction of the Customary Court of Appeal of the FCT, Abuja above applies *mutatis mutandis* to the Customary Court of Appeal of a State. The only fundamental difference is their distinct sphere of authority, territorial jurisdictions. In other words, each court has its jurisdiction restricted only to its territory. In addition to that, section 280 (1) of the 1999 Constitution makes it clear that the establishment of the Customary Court of Appeal of a State is voluntary and open only to any State that desires or “requires” it.

Adv Chimdike et Faithful